

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zachary Herman	Team: Squad #11	CCRB Case #: 201803472	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 04/27/2018 7:15 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/27/2019	Precinct: 94		
Date/Time CV Reported Fri, 05/04/2018 9:53 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 05/04/2018 9:53 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Kellan Oneill	10409	952069	PSA 3
2. SGT Jose Rodriguez	04920	923057	INT CIS
3. Officers			ESU

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered § 87(2)(b), in Brooklyn.	A . Exonerated
B . POM Kellan Oneill	Abuse: Police Officer Kellan O'Neill searched § 87(2)(b), in Brooklyn.	B . Exonerated
C . POM Kellan Oneill	Abuse: Police Officer Kellan O'Neill refused to show search warrant to § 87(2)(b)	C . Unsubstantiated
D . SGT Jose Rodriguez	Abuse: Sergeant Jose Rodriguez refused to show search warrant to § 87(2)(b)	D . Unsubstantiated

Case Summary

On May 4, 2018, § 87(2)(b) made this complaint over the phone to the CCRB.

On April 27, 2018, at approximately 7:30am, officers from the Emergency Services Unit of the New York City Police Department broke down the door to § 87(2)(b), in Brooklyn, which is Department of Health Services managed building. The officers entered the apartment, which was a single-room occupancy apartment, shouting “where’s the fucking guns, where’s the fucking dope” towards both § 87(2)(b) and § 87(2)(b) and pointed their weapons at the aforementioned individuals (**Allegation A: Abuse of Authority:** § 87(2)(g)). The officers from ESU proceeded to handcuff § 87(2)(b) and § 87(2)(b).

Immediately upon ESU officers entering his apartment, § 87(2)(b) requested to see the warrant from these officers. After this request occurred, PO Kellen O’Neill of Police Service Area 3 entered the apartment. He informed § 87(2)(b) that his apartment was going to be searched. Sergeant Jose Rodriguez of the NYPD Intelligence Criminal Section was downstairs and went upstairs to oversee the search of the apartment. § 87(2)(b) and § 87(2)(b) were then transported to a police vehicle outside of the building, and placed in the back of the vehicle. § 87(2)(b) and § 87(2)(b) requested to see the search warrant from an unidentified officer inside this vehicle. After approximately thirty minutes, PO O’Neill returned to the vehicle. He informed § 87(2)(b) and § 87(2)(b) that marijuana had been recovered from the apartment (**Allegation B: Abuse of Authority:** § 87(2)(g)). § 87(2)(b) stated that the marijuana was his. § 87(2)(b) requested to see the warrant from PO O’Neill at that point, PO O’Neill informed him that the officers were from the District Attorney’s office and that he would get it. Ultimately, PO O’Neill did not show the warrant as requested. During his CCRB interview, Sgt. Jose Rodriguez, the supervising officer during the execution of the search warrant testified that he presented § 87(2)(b) with a copy of the search warrant (**Allegations C and D: Abuse of Authority,** § 87(2)(g)). § 87(2)(b) was then uncuffed and allowed to return to her apartment. § 87(2)(b) was taken into custody and transported to the 84th Precinct stationhouse for processing.

There is no video evidence in this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers entered § 87(2)(b), in Brooklyn.
Allegation (B) Abuse of Authority: PO Kellan O’Neill searched § 87(2)(b), in Brooklyn.

It is undisputed that a search warrant was executed at § 87(2)(b), in Brooklyn, and that PO O’Neill was the requesting officer for that search warrant, and that ESU officers who conducted the initial entry into the apartment were assisting PO O’Neill’s execution of this warrant.

Search Warrant § 87(2)(b) was signed by § 87(2)(b) on § 87(2)(b) and was executed on April 27, 2018, § 87(2)(b) (BR11).

According to New York State Criminal Procedure Law § 690.50, officers may enter and search a location if they possess a valid search warrant (BR12).

§ 87(2)(g)

Allegation (C) Abuse of Authority: Police Officer Kellen O'Neill refused to show search warrant to § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Jose Rodriguez refused to show search warrant to § 87(2)(b)

§ 87(2)(b) testified that after the search warrant was executed, he and § 87(2)(b) were transported outside to a police vehicle. While inside this vehicle, both he and § 87(2)(b) requested to see the search warrant from an unidentified officer inside the vehicle. After approximately thirty minutes, PO O'Neill came outside and spoke to § 87(2)(b) and § 87(2)(b). § 87(2)(b) requested to see the warrant from PO O'Neill, who responded that he was from the District Attorney's office, and that § 87(2)(b) would get the warrant. § 87(2)(b) was never provided the warrant by PO O'Neill, or any other officer (BR02).

§ 87(2)(b) testified she did not make a warrant request to any officer other than the one inside the police vehicle, and did not hear any requests to see the search warrant from § 87(2)(b) to any officer other than the one in the vehicle (BR01).

PO O'Neill testified that he did not recall if § 87(2)(b) or § 87(2)(b) requested to see the warrant at any point during their interaction (BR05).

Sgt. Rodriguez testified that he showed the search warrant to § 87(2)(b) and § 87(2)(b) upon first encountering them outside their apartment in the hallway of the building. Later, at the 84th Precinct stationhouse, Sgt. Rodriguez ripped the search warrant out of his search warrant pre-execution plan, and gave this copy of the search warrant to § 87(2)(b) (BR08).

According to § 87(2)(b) he requested to see the search warrant multiple times from ESU, and once from PO O'Neill. § 87(2)(b) stated that § 87(2)(b) requested to see the search warrant from ESU officers and the unidentified officer in the vehicle with them. Sgt. Rodriguez testified he showed the search warrant to § 87(2)(b) and § 87(2)(b). PO O'Neill did not recall if § 87(2)(b) or § 87(2)(b) requested to see the search warrant from him. He stated that it would be his supervisor's responsibility to physically possess and show the search warrant upon request. There is a notation on Sgt. Rodriguez's post search warrant execution plan that he gave the search warrant to § 87(2)(b) at the 84th Precinct stationhouse. Additionally, a page was ripped out of Sgt. Rodriguez's tactical plan.

§ 87(2)(g)
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Allegations not pled:

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

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§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (BR09).
- This is § 87(2)(b)'s first CCRB complaint (BR10).
- Sgt. Rodriguez has twelve total CCRB complaints, with no substantiations. § 87(2)(g)
- PO O'Neill has six total CCRB complaints, with eleven charges and one substantiation. In CCRB Case No. 201410262, PO O'Neill was substantiated for a detainment allegation. The Board recommended PO O'Neill receive APU charges, and he ultimately received a reprimand from the NYPD.

Mediation, Civil and Criminal Histories

- Mediation offered to and rejected by § 87(2)(b) and § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- The results of a FOIL request submitted in regard to this case was received from the Office of the New York City Comptroller on September 18, 2018. No notices of claims have been filed regarding this case (BR13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 11

Investigator: _____ Investigator Zachary Herman
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

